

1.

CASE #	CASE NAME	HEARING NAME
CVRI2302604	ABDULLAH VS CHENG, M.D.	MOTION FOR SANCTIONS COMPLIANCE BY DEPONENT JOSE CASTELL WITH COURT'S NOVEMBER 3, 2025 ORDER COMPELLING PRODUCTION OF PLAINTIFF'S ELECTRONICALLY STORED MEDICAL RECORDS

Tentative Ruling:

GRANT the Motion to Compel Deponent Joe Castell to comply with the court's November 3, 2025, Order, within 10 days. Defendants Jean Chang, M.D., and Jean M.D., Inc., dba Best Lasik Laser Eye Center are sanctioned in the reduced amount of \$1,500, payable to Plaintiff's counsel within 30 days. The Court declines to order that facts be deemed established or that CACI No. 204 applies at this time. Defendant's Opposition to this Motion was grossly untimely and has not been considered by the Court.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2302933	MORGAN VS SAN GORGONIO MEMORIAL HOSPITAL	MOTION FURTHER DEPOSITION TESTIMONY OF ANA VALDEZ, R.N., B.S.N.

Tentative Ruling:

GRANT the Motion to Compel Further Deposition Testimony.

At issue is the May 7 deposition of Ana Valdez ("Valdez"), the Director of Risk Management and Quality Assurance for Defendant San Gorgonio Memorial Hospital. Valdez was instructed by counsel not to answer five questions at her deposition, with Defense counsel objecting to the questions on the grounds of improper expert opinion, speculation, and lack of foundation. Defense counsel did not object to the questions on the basis of privilege.

The cases cited by Defendant for the proposition that Valdez should not be compelled to answer the questions (*County of Los Angeles v. Superior Court* (1990) 224 Cal.App.3d 1446 and *St. Mary Medical Center v. Superior Court* (1996) 50 Cal.App.4th 1531) are factually distinguishable from this case. In *County of Los Angeles*, the court addressed whether a *physician* should be compelled to respond to a question under Evid. Code § 1157. In contrast, Valdez is not a physician and is not asked questions regarding the standard of care. In *St. Mary*, the issue was whether an expert's deposition should be allowed before the hearing on a Motion for Summary Judgment and before the statutory expert exchange. *St. Mary* does not involve questions posed during deposition such as the facts related to Valdez.

The Court finds that a sufficient foundation has been laid for Valdez's qualifications to answer questions related to her own job duties and responsibilities, and the five questions are clearly within the scope of Valdez's role as Director. The five questions are within her own job description and relate to her responsibilities and job duties. In addition, her testimony affirming her job duties and responsibilities is a sufficient foundation for her to testify as the custodian of records. GRANT

The Court awards monetary sanctions against the Defendant Hospital in the reduced amount of \$1,090 (\$350/hour x 3 hours plus \$40 filing fee), payable to Plaintiff's counsel within 30 days.

3.

CASE #	CASE NAME	HEARING NAME
RIC1117805	BRUCH VS BEGLEY	MOTION TO AMEND JUDGMENT

Tentative Ruling:

GRANT.